

or raise a valid defense, the Court must grant the motion.

12. 9:00 AM CASE NUMBER: MSC15-01952

CASE NAME: MCGUIRE VS BRENKLE

***HEARING ON MOTION IN RE: FOR ORDER AWARDING ATTORNEY'S FEES (CONT'D PER TR ON 4/10/26)**

FILED BY: MCGUIRE, FRANK J

TENTATIVE RULING:

The motion of Plaintiffs Frank J. McGuire and Bethanie A. McGuire for an Order Awarding Attorney's Fees is granted. The court finds that the Plaintiffs are seeking attorney's fees for the Contempt Ruling of the trial court, which found the Defendants violated the Permanent Injunction by failing to reconnect a water line supplying water to the Plaintiff's property. Anderson Decl., Exs. 4, 8.

The Court finds that the fees and costs are reasonable and necessary. The fees incurred in the Court of Appeal are recoverable, as they were incurred in connection with the contempt proceeding. The Court finds that the instant motion relates back to the original motion because the parties agreed that the hearing on the motion should be continued to allow the Court of Appeal to hear the Defendants' appeal, and that the parties agreed that if the contempt was upheld, that the Plaintiffs would be allowed to amend their papers to see their fees on appeal. Decl. of Anderson in Support of Reply, Ex 31, Ex 32. The hearing on the initial attorneys' fees motion was postponed and the parties' settlement efforts failed, and the Plaintiffs filed the instant motion.

The Court finds good cause, in the alternative, to extend time for the Plaintiffs for filing a motion for attorney's fees, per Cal. Rule of Court 3.1702(d). The court finds the Plaintiffs have acted in good faith, have attempted to resolve the matter on numerous occasions, and allowed the matter to be put on the backburner while the Defendants pursued their ultimately unsuccessful appeal.

The Court finds the Defendants have not been prejudiced by having this motion heard.

The Court orders the Defendants Thomas R. Brenkle and Natalie A. Brenkle to pay the Plaintiffs Frank J. McGuire and Bethanie A. McGuire the sum of \$60,776.35 within 10 court days of service of notice of entry of this order.

13. 9:00 AM CASE NUMBER: MSC21-01379

CASE NAME: MOFFETT VS. SONIC WALNUT CREEK

HEARING ON SUMMARY MOTION

FILED BY: MERCEDES-BENZ USA,LLC

TENTATIVE RULING:

The Court continues this motion to **October 2, 2026 at 9:00 a.m.** in this Department.